

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a**

national report on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: [Czechia](#)

Organization or entity responsible for the preparation of the report:

[Ministry of Education, Youth and Sports](#)

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level**1. Ratification of the Convention²****Is your country a State Party to the Convention?**

☒ Yes – [The Czech Republic joined the Convention in March 1993.](#)

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

→ *the obstacles, whether legal, institutional, political or practical*

→ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☒ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☒ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☒ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

Charter of Basic Rights and Freedoms of the Czech Republic of 1992, which is part of the constitutional order of the Czech Republic, Article 33

Act No. 561 (Education Act) of 2004 (as amended up to 2019), Section 2

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation prohibit discrimination in education

☒ Regulations prohibit discrimination in education

☒ Policies and programmes aim to eliminate and prevent discrimination in education

☒ Access to justice in case of violations of the right to non-discrimination in education

☒ Combatting discrimination in terms of curriculum

☐ Other:

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

Act No. 561/2004 Coll., on pre-school, basic, secondary, tertiary professional and other education (Education Act), as amended, states that education is based on the principles of equal access of every citizen of the Czech Republic or another Member State of the European Union to education without any means of discrimination on the basis of race, colour, sex, language, creed and religion, nationality, ethnic or social origin, property, gender and the state or health of a citizen. Children, pupils and students with special educational needs are provided with support measures to ensure equal access to education. Support measures include pedagogical support, special aids, adjustment of the organization of education, etc.

The Czech Republic has several strategic documents, their main goals aim to ensure equal access to education for all (children, pupils, students, including foreigners). In these documents, i.e. the Long-term Plan for Education and Development of the Education System of the Czech Republic for the period 2019-2023, the Action Plan for Inclusive Education for the period 2019-2020 and the conceptual document Strategy of Education Policy of the Czech Republic until 2030+, specific measures were taken to ensure the fulfilment of the given goals.

- 1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- ☒ Providing financial incentives and
- ☒ Providing auxiliary assistance

⁶ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

fellowships

- ☐ Providing positive or affirmative action measures
 - ☒ Ensuring inclusion in mainstream schools for all learners
 - ☒ Training teachers on inclusive education
 - ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET)
 - ☐ Providing re-entry programmes for young mothers
 - ☐ Eliminating all barriers for pregnant girls or young mothers in education
 - ☐ Other:
- ☒ Adapting education infrastructure
 - ☒ Adapting curricula and methods
 - ☒ Providing language classes to newcomers (e.g. refugees)
 - ☒ Eliminating administrative barriers to education⁷
 - ☐ Providing flexible learning pathways
 - ☒ Valuing diversity in schools
 - ☒ Combatting stereotyping and stigmatisation

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

As mentioned, the Czech Republic possesses several strategic documents, their main goals aim to ensure equal access to education for all. In these documents, i.e. the Long-term Plan for Education and Development of the Education System of the Czech Republic for the Period 2019-2023 and the Action Plan for Inclusive Education for the Period 2019-2020, specific measures were taken to ensure the fulfilment of the given goals.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

Act No. 89/2012 Civil Code – Section 672

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☒ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Pre-primary education is compulsory from the beginning of the school year following the day when the child reaches the age of five, until the beginning of compulsory school attendance at a primary school.

☒ Pre-primary education is free of charge for all: Please provide the duration:

Education in a kindergarten established by the state, region, municipality or association of municipalities is provided to the child free of charge from the beginning of the school year following the day when the child reaches the age of five. It is provided free of charge even in the case of granting a postponement of compulsory school attendance.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Education Act (No. 561/2004 Coll.) states that a child for whom pre-school education is compulsory is educated in a nursery school established by a municipality or association of municipalities with a seat in the school district in which the child has a place of permanent residence (in case of a foreigner a place of residence). According to an estimate based on the total number of five-year-olds in the Czech Republic, the share of five-year-olds in pre-primary education has been around 97 % since 2017. The Ministry of Education, Youth and Sports, through the Technology Agency of the Czech Republic, has commissioned the project "Verification of the impacts of the introduction of compulsory final year of pre-primary education", which will evaluate the impacts of the introduction for three years, including with regard to socially excluded localities. Its main goal is to map and describe the specific impacts and obstacles to the implementation of compulsory pre-primary education.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

⁸ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Basic education at basic schools is compulsory from the age of six for a period of nine years. It shall consist of nine (9) grades and shall be divided into a first level (primary education – grade 1-5) and a second level (lower secondary education – grade 6-9).

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Compulsory school attendance in schools established by the state, region, municipality or association of municipalities is provided free of charge.
Parents contribute towards indirect costs such as transport costs, certain teaching materials, lunches, trips or cultural events.

Act No. 561 (Education Act) of 2004, Sections 36, 46
The Constitution of the Czech Republic

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Secondary education (lower secondary education – grades 6-9 of basic school and upper secondary education – general or vocational) at schools established by the state, a region, a municipality or a union of municipalities is provided free of charge. Parents contribute towards indirect costs such as transport costs, certain teaching materials, lunches, trips or

cultural events.

Charter of Basic Rights and Freedoms of the Czech Republic of 1992 which is part of the constitutional order (Article 3 of the Constitution of the Czech Republic of 1992), Article 33 (2)

Act No. 561(Education Act) of 2004 (as amended up to 2019), Sections 2, 46, 58

- ☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ Yes ☒ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Upper secondary education (after the basic school attendance, which is compulsory for period of nine (9) years) is not compulsory in the Czech Republic.

Upper secondary schools provide mainly upper secondary education which may be general or vocational (with a higher or lower share of general component), whereas vocational programmes prevail. The participation rate of the 15–19 year-old pupils is about 90%. The minimum entrance requirement to enter this level is completion of basic education. The admission procedure may include an entrance examination. In four-year and multi-year general programmes, the applicants pass the obligatory common admission examination.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions:

The minimum age of employment is fifteen years, with an added stipulation that work cannot start before the individual completes compulsory school attendance. Compulsory school attendance ends usually at the age of fifteen.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training

☐ Regulations prohibit discrimination in higher education, including technical and vocational education and training

☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

➔ *Non-differential treatment, including of foreign students*

Act No. 111 Coll. on Higher Education Institutions

- Section 1 Introductory Provision: facilitating access to higher education in compliance with democratic principles; providing appropriate professional qualifications and training for research work and other demanding specialized activities

- Section 21 Other Obligations of Public Higher Education Institutions: A public higher education institution is obliged to make all possible provisions for ensuring equal opportunities for study at the higher education institution;

Strategic Plan for Higher Education Institutions 2021+

- Vision of Higher Education in the Czech environment: Higher education offers equal opportunities for education and is open to all persons, regardless of their gender, age, ethnicity or social and family background. Adequate support is provided to those who face economic, social, cultural, health or other barriers to accessing their studies.

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

☒ Higher education is generally free of charge

☐ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience

☒ Higher education is accessible through financial incentives and scholarships

☐ Higher education is accessible through positive or affirmative action measures

☐ Higher education is accessible through credit transfer system between states

☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

☒ Provision of education for persons who have not received or completed the whole period of their primary education

☐ Provision of literacy programmes

☒ Provision of appropriate learning and life-skills programmes

☒ Provision of free of charge learning opportunities

- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

In 2007, Act No. 179/2006 Coll., on the verification and recognition of further education results, as amended (Act on the Recognition of Further Education Results), came into effect. This Act makes it possible for individuals to have their acquired competencies recognised by means of professional qualifications examinations that are described in the National System of Qualifications. Recognition may take place regardless of the way in which these competencies have been acquired and regardless of the necessity of prior education. A precondition for sitting a professional qualification examination is the minimum age of 18 years and basic education (not completed primary education). Following a successful professional qualification examination, an individual receives a professional qualification certificate, which has lifelong validity. The certificate proves a certain qualification, this individual has to pursue certain work activities, in certain cases even a profession. By obtaining the certificate the individual increases their chances of finding a job on the labour market.

Furthermore, the National System of Qualifications makes it possible to sit a final or school-leaving examination without the need for prior education in a school institution if a person has obtained a full professional qualification in a given field. Full professional qualifications that follow up on secondary fields of education may be found at <http://www.narodnikvalifikace.cz/vyber-kvalifikace/obory-vzdelani/skupiny-oboru-vse/pouze-platne-ano/pouze-s-termíny-zkousek-ne/seradit-1v/ku-1-8>. In order to obtain a full professional qualification, professional qualification examinations that are the components of a full professional qualification have to be passed first (see the link above).

Act No. 561/2004 Coll., on pre-school, primary, secondary, tertiary professional and other education (the Education Act) does not restrict an adult of any age in any way from having access to obtaining primary and secondary education free of charge.

The Ministry of Education, Youth and Sports accredits retraining programs in accordance with Act No. 435/2004 Coll., On Employment, as amended, and Decree No. 176/2009 Coll., which lays down the requirements for the application for accreditation of an educational program, education organization in the retraining facility and the method of its termination.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☐ Establishment of minimum norms and standards in education

- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☒ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

Act No. 561 (Education Act) of 2004

Article 29 (1,2) Schools and school facilities shall ensure the safety and protection of health of children, pupils, and students in education and directly related activities and in providing school services, and they shall provide pupils and students with necessary information on safety and health protection.

Section 30 (1) Head teachers shall issue the School Rules of Order; principles of school facilities shall issue Internal Rules of Order. School Rules of Order and Internal Rules of Order shall regulate: c) conditions on ensuring the safety and protection of health of children, pupils or students and their protection against pathological social phenomena and against manifestations of discrimination, hostility, or violence;

In the response to COVID-19 crisis the Ministry has provided 1,3 bil CZK to primary schools to equip with digital technologies enabling connection of more children to online learning process.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☐ Minimum standards and qualifications are required for the teaching profession
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

Measures in progress:

Planned continuous improvement of the remuneration of teachers so that their salaries are more comparable with other professions with a similar level of required education.

Improvement of methodological and professional development support for teachers and directors - activities of the "SYPO" (systematic support for all teachers and directors) project.

Financial interventions aimed at universities educating the future teachers.

- Please briefly elaborate further on the measures taken:

Planned continuous improvement of the remuneration of teachers so that their salaries are more comparable with other professions with a similar level of required education.

Continuous improvement in the level of remuneration can significantly motivate recent graduates to pursue the teaching profession, as well as professionally qualified teachers who already left the teaching profession to return to school.

Teachers' salaries have been rising for several years. The goal is to reach 150% of 2017 salary in 2021.

The Ministry of Education, Youth and Sports has also prepared an amendment to the Act No. 563/2004 Coll. on pedagogical staff, which simplifies entry into pedagogical practice for professionals and graduates of any master's degree program. The draft of the amendment (which is still subject to negotiations by Chamber of Deputies) introduces the so called institute of an adaptation period to improve the situation for teachers-beginners.

Improvement of methodological and of methodological and professional development support for teachers and directors - activities of the "SYPO" (systematic support for all teachers and directors) project.

The SYPO project is focused on the creation, verification and implementation of a system of comprehensive modular support contributing to increasing the professional development of school leaders and teachers in the field of didactics through professional communities using a wide range of forms of peer support and of Further education of pedagogical staff conceptual document with defined quality criteria.

With regard to support for teachers-beginners, the SYPO project will design and validate the concept of comprehensive and continuous support for teachers-beginners in cooperation with introductory teachers and school management. Regarding school management, the SYPO project will design and verify a model of a comprehensive, continuous and modular system of school management support, especially in the area of pedagogical management.

Financial interventions for universities educating the future teachers.

Cílená podpora studijních programů zaměřených na přípravu pedagogických pracovníků je MŠMT realizována od roku 2014. V letech 2019 a 2020 šlo každoročně o dalších 200 mil. Kč. S podporou vzdělávání pedagogů se počítá i v dalších letech. Pedagogické fakulty/fakulty vzdělávající učitele jsou podporovány i ve výzvách prioritní osy 3 OP VVV, a to v celkové alokované částce cca 5 mld. Kč, z toho cca 2 mld. Kč částky schválených projektů).

The MEYS has implemented targeted financial support of study programs focused on the training of pedagogical staff since 2014. In 2019 and 2020, the financial support amounted to CZK 200 million per year and is also expected in the coming years. Faculties of Education are also supported in the calls of priority axis 3 of the OP RDE (Operational programme Research, Development and Education 2014-2023), in the total allocated amount of approx. CZK 5 billion, of which approx. CZK 2 billion is the amount of approved

projects.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☒ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ Curriculum includes human rights education

☒ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

The regulation of the functioning of private schools is included in Act No. 561 (Education Act).

The Act on Providing Subsidies to Private Schools and Pre-school and School

¹²

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

Establishments (No. 306/1999)

The financing of private schools by the state has its own rules. Tuition and other direct and indirect expenses are regulated by a contract between school and family.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

Act No. 561 (Education Act) of 2004
The Constitution of the Czech Republic

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☒ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation protect the right to education of national minorities

☒ Legislation or regulations guarantee the right of national minorities to study in their mother tongue

☐ Curriculum is adapted to national minority needs

☒ Teachers are trained to adapt to national minority needs

☒ Other:

- Please provide a brief description of the provisions:

There is a possibility to establish schools for national minorities or classes for national minorities within ordinary schools under given conditions (Section 14 of the Act No. 561 - Education Act).

If it is not possible to establish a class or school for a national minority according to the conditions as mentioned above, it is possible to educate bilingually (in Czech and in the

language of the national minority).

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

The Framework Educational Programmes apply to all schools established under the Act No. 561 (Education Act), including schools and classes for national minorities.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to "ensure equal access to all levels of education and vocational training for the vulnerable", including "children in vulnerable situations", and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

The access of foreigners to education in the Czech Republic is described in Section 20 of the Act No. 561 (Education Act). EU citizens have access to education under the same conditions as Czech citizens; for other foreigners, access to education and school services is described in Section 20, Paragraph 2 of the Education Act. E.g. compulsory school attendance applies to everyone regardless of the type of stay in the Czech Republic.

The types of stay of foreigners are regulated by Act No. 326/1999 Coll., on the Residence of Foreign Nationals in the Czech Republic (gesture of the Ministry of Interior).

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

☒ Inclusion in mainstream education

☒ Provision of language courses

☒ Specific training for educational staff

☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☒ Non-formal and/or alternative education programs
- ☐ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

The Long-term Plan for the Development of Education and the Education System of the Czech Republic for the period 2019-2023 includes measures aimed at increasing the share of children in pre-primary education with a focus on socially excluded localities. The Ministry of Education, Youth and Sports, together with the Ministry of Labour and Social Affairs, issued an opinion on the enrolment of a child in compulsory pre-primary education <https://www.msmt.cz/vzdelavani/predskolni-vzdelavani/stanovisko-ministerstva-prace-a-socialnich-veci-a>. The Long-term Plan also includes measures aimed at developing cooperation between schools and social service providers for a multidisciplinary approach to children, pupils and students with social disadvantages and their families.

The recent Strategy of education policy of the Czech Republic until 2030+ focuses on tackling with education challenges. One of its two strategic goals is dedicated to elimination of inequalities in access to quality education and endorsing maximal development of children, pupils' and students' potential. It is important to eliminate influence of socio-economical background on pupils' educational outcomes, addressing regional disparities and eliminating segregating tendencies in education. It aims at supporting digital education and prevention of digital gap.

MEYS supports development of distance learning. It embedded distance learning in the Education Act. It also developed the methodology for distance learning. The education budget was increased by 1,3 milliard CZK and will be used for digital equipment of teachers. During the spring 2020, the National Pedagogical Institute provided teachers with methodological support, mainly by webinars. Maintaining high quality distance education is essential for inclusion of disadvantaged children, pupils and students not only

during the crisis.

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

Despite increase in pedagogical staff's salaries (Amount of budget for salaries of teachers in regional education was raised by 10% since January 2020). The attractiveness of teaching profession remains being a challenge. Strategy of education policy of the Czech Republic until 2030+ targets on increasing attractiveness of teaching profession by improvement of quality education content of the faculties preparing teachers, connecting study with practical training, increasing budget for teachers' salaries, better possibilities to professional development, supporting of networking and international mobility.

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

The Czech Republic has one of the most decentralized education systems among the OECD countries. There is undergoing discussion about the concept of "middle segment" of education governance which would connect MEYS with schools in a closer and more efficient way. It would also bring various supports for school leaders who are responsible for school operation.

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education

- ☐ Increased public awareness through advocacy material on the Convention/ Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

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